

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RAY WESLEY SUDDABY JR,

Petitioner

VS.

OLGA ALEXANDROVNA SUDDABY,

Respondent

) Case Number: FDI-25-802208

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: PROPERTY CONTROL, FL-150 / FL-160 AND DISCLOSURE
CORRECTIONS; REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES
AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Ray Wesley Suddaby Jr. and Respondent Olga Alexandrovna Suddaby.
There are no minor children subject to his proceeding.
- 2) On 11/15/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 10/16/23
and date of separation is 10/17/25 for a marriage of 2 years. On 1/29/26, Respondent filed a
Response and Request for Dissolution indicating the date of marriage is 10/16/23 and date of
separation is 12/16/25 for a marriage of 2 years and 2 months.
- 3) On 5/13/26, Respondent filed a Request for Domestic Violence Restraining Order (DVRO) in
related case no. FDV-26-819161 seeking protection from Petitioner.
- 4) On 5/14/26, the Court issued a Temporary Restraining Order (TRO) wherein Respondent is the
protected party and Petitioner is the restrained party. The TRO lists Petitioner's minor child as a
protected party. Petitioner was ordered to move out of the apartment located at 370 Monterey

1 Blvd., San Francisco. This matter has been continued several times and is currently set for
2 hearing on 10/16/26.

- 3 5) On 5/15/26, Petitioner filed a Request for Order seeking temporary exclusive use, possession, and
4 control of the leasehold on 370 Monterey Blvd., San Francisco with Respondent ordered to vacate
5 the apartment and an order compelling Respondent to file corrected financial disclosures.

6 Petitioner states the lease is in his name only, and he lived in the apartment for 23 years while
7 Respondent has lived there for 2 years. Petitioner attached a summary of alleged inconsistencies
8 and omissions in Respondent's financial disclosures. This matter has been continued several
9 times and is currently set for hearing on 8/25/26.

- 10 6) On 6/8/26, Respondent filed a Request for Order seeking \$1,279 in temporary monthly spousal
11 support and \$3,500 in attorney's fees and costs. Respondent asserts a disparity in the parties'
12 income as she moved from Russia for the parties' marriage and Petitioner sponsored her
13 immigration and supported a middle-class lifestyle. Respondent states her income fluctuates
14 seasonally as she is a piano instructor so she cannot afford the marital standard of living.
15 Respondent attaches a proposed XSpouse calculation, which indicates Petitioner's income is
16 \$113,789 annually (\$9,482 monthly) per the parties' 2024 tax return. This matter has been
17 continued several times and is currently set for hearing on 8/25/26.

- 18 7) On 6/26/26, Respondent filed a Responsive Declaration in opposition to Petitioner's 5/15/26
19 Request for Order. Respondent asserts that Petitioner was ordered to vacate the apartment in the
20 related domestic violence proceeding. Respondent further asserts she complied with disclosure
21 requirements.

- 22 8) On 7/17/26, Petitioner filed a Responsive Declaration in opposition to Petitioner's 6/8/26 Request
23 for Order. Petitioner disputes the accuracy of Respondent's alleged monthly income and states he
24 voluntarily pays the following expenses for Respondent: rent, utilities, home internet, medical
25 insurance, and related benefits. Petitioner asserts that Respondent's incomplete financial
26 disclosures do not establish that she cannot afford her own legal fees.

- 27 9) The Court notes Respondent filed an Income and Expense Declaration on 3/24/26; Petitioner
28 failed to file an Income and Expense Declaration.

29 **B. Findings and Order**

- 1) Petitioner's request for temporary exclusive use, possession, and control of the leasehold on 370 Monterey Blvd., San Francisco with Respondent ordered to vacate the apartment is DENIED. Petitioner was ordered to move out of the apartment under the TRO issued 5/14/26. The Request for DVRO is set for hearing on 10/16/26.
- 2) Both parties filed forms FL-141 (Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration): Petitioner on 3/27/26 and Respondent on 4/1/26. In so far as Petitioner has not received complete financial disclosures as required by Family Code section 2014, he may seek relief available to him under Family Code section 2107. However, the Court finds Petitioner's Request for Order filed 5/15/26 does not constitute a motion to compel further responses. Accordingly, this request is DENIED without prejudice.
- 3) Respondent's request for temporary monthly spousal support is GRANTED effective 6/8/26 (i.e., the filing date of Respondent's Request for Order).
- 4) In accordance with the XSpouse report attached hereto and incorporated herein, Petitioner shall pay Respondent \$1,160 per month in guideline monthly spousal support.
- 5) The XSpouse report is based on Petitioner earning \$9,482 per month and Respondent earning \$4,512, which Respondent estimates based on the parties' 2024 tax returns.
- 6) Respondent's request for Family Code section 2030 attorney's fees and costs is GRANTED in the amount of \$2,000. After support is paid, Petitioner will have 57% of the parties' combined net spendable income while Respondent will have 43% of the parties' combined net spendable income. As such, the Court finds an award of attorney's fees and costs is appropriate here due to a disparity in income and access to funds.
- 7) Petitioner shall pay Respondent an additional \$500 per month until the \$2,000 in attorney's fees and costs is paid in full. The Court finds Petitioner is reasonably likely to have the ability to pay \$2,000 towards Respondent's legal fees while maintaining his own legal representation.
- 8) Finally, the Court finds \$2,000 in attorney's fees and costs is reasonable and necessary.
- 9) The Court will prepare the Finding and Order After Hearing.

26-08-25 xspouse suddaby v. suddaby 802208.xsp

2026**Fixed Shares**

	Husband	Wife
Number of children	0	0
Percent time with NCP	0.00%	0.00%
Filing status	MFJIN	MFJIN
Number of exemptions	1	1
Wages and salary	9482	4512
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Husband	7158
Wife	3406
Total	10564

Support

Addons	0
Guideln CS	0
S.Clara SS	1160
Total	1160

Settings changed**Proposed****Tactic 9**

CS	0
SS	1160
Total	1160
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	10563	10563
Percent change	0%	0%

Husband		
Payment cost/benefit	-1160	-1160
Net spendable income	5998	5998
Change from guideline	0	0
% of combined spendable	57%	57%
% of saving over guideline	0%	0%
Total taxes	2325	2325
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	7404	7404

Wife		
Payment cost/benefit	1160	1160
Net spendable income	4566	4566
Change from guideline	0	0
% of combined spendable	43%	43%
% of saving over guideline	0%	0%
Total taxes	1106	1106
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	3733	3733

Husband pays Guideline SS, Proposed SS

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband